

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                                          |                                                                              |                           |                                                       |                                               |                                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|------------------------------------------|
| Investigator:<br>Coleson Smith                                                                                                                           | Team:<br>Squad #13                                                           | CCRB Case #:<br>202206257 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input checked="" type="checkbox"/> U.S. |
|                                                                                                                                                          |                                                                              |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury          |
| Incident Date(s)<br>Tuesday, 09/06/2022 9:31 PM, Wednesday,<br>02/22/2023 10:13 AM, Wednesday,<br>03/22/2023 11:31 AM, Wednesday,<br>03/22/2023 12:04 PM | Location of Incident:<br>In front of § 87(2)(b);<br>inside 100 Church Street | 18 Mo. SOL<br>3/6/2024    | Precinct:<br>48                                       |                                               |                                          |
| Date/Time CV Reported<br>Wed, 09/07/2022 1:25 AM                                                                                                         | CV Reported At:<br>IAB                                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 09/20/2022 7:47 AM |                                               |                                          |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)            | Shield | TaxID  | Command |
|-------------------------------|--------|--------|---------|
| 1. PO Dominick Rodriguez      | 24406  | 962743 | 048 PCT |
| 2. PO Brian Mcallister        | 09347  | 963639 | 048 PCT |
| 3. PO Clairet Corderolantigua | 23864  | 967018 | 048 PCT |
| 4. PO Michael Rosario         | 20178  | 968106 | 048 PCT |

| Officer(s)                     | Allegation                                                                                                             | Investigator Recommendation          |
|--------------------------------|------------------------------------------------------------------------------------------------------------------------|--------------------------------------|
| A . PO Clairet Corderolantigua | Abuse: On September 6, 2022, Police Officer Clairet Corderolantigua stopped § 87(2)(b)                                 | A . Substantiated                    |
| B . PO Dominick Rodriguez      | Abuse: On September 6, 2022, Police Officer Dominick Rodriguez stopped § 87(2)(b)                                      | B . Miscellaneous - Subject Resigned |
| C . PO Clairet Corderolantigua | Abuse: On September 6, 2022, Police Officer Clairet Corderolantigua frisked § 87(2)(b)                                 | C . Substantiated                    |
| D . PO Dominick Rodriguez      | Abuse: On September 6, 2022, Police Officer Dominick Rodriguez frisked § 87(2)(b)                                      | D . Miscellaneous - Subject Resigned |
| E . PO Dominick Rodriguez      | Discourtesy: On September 6, 2022, Police Officer Dominick Rodriguez spoke discourteously to § 87(2)(b)                | E . Miscellaneous - Subject Resigned |
| F . PO Clairet Corderolantigua | Discourtesy: On September 6, 2022, Police Officer Clairet Corderolantigua spoke discourteously to § 87(2)(b)           | F . Unable to Determine              |
| G . PO Clairet Corderolantigua | Abuse: On September 6, 2022, Police Officer Clairet Corderolantigua failed to provide § 87(2)(b) with a business card. | G . Substantiated                    |
| H . PO Dominick Rodriguez      | Abuse: On September 6, 2022, Police Officer Dominick Rodriguez failed to provide § 87(2)(b) with a business card.      | H . Miscellaneous - Subject Resigned |
| § 87(2)(g), § 87(4-b)          |                                                                                                                        |                                      |
|                                |                                                                                                                        |                                      |
|                                |                                                                                                                        |                                      |

| Officer(s)                     | Allegation                                                                                                                           | Investigator Recommendation |
|--------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| § 87(2)(g), § 87(4-b)          |                                                                                                                                      |                             |
| M . PO Clairet Corderolantigua | Untruthful Stmt.: On February 22, 2023, Police Officer Clairet Corderolantigua provided a misleading official statement to the CCRB. | M . Substantiated           |
| N . PO Brian Mcallister        | Untruthful Stmt.: On March 22, 2023, Police Officer Brian Mcallister provided a misleading official statement to the CCRB.           | N . Substantiated           |
| O . PO Michael Rosario         | Untruthful Stmt.: On March 22, 2023, Police Officer Michael Rosario provided a misleading official statement to the CCRB.            | O . Substantiated           |

## Case Summary

On September 7, 2022, § 87(2)(b) filed this complaint over the phone with IAB (**01 Board Review**). On September 20, 2023, it was received at the CCRB.

On September 6, 2022, at approximately 9:31 P.M., Police Officer Clairet Corderolantigua and Police Officer Dominick Rodriguez of the 48<sup>th</sup> Precinct stopped § 87(2)(b) in front of § 87(2)(b) in the Bronx (**Allegations A: Abuse of Authority – Stop, substantiated; Allegation B: Abuse of Authority – Stop, subject resigned**). Their partners, Police Officer Brian Mcallister and Police Michael Rosario of the 48<sup>th</sup> Precinct, waited in an unmarked black Ford Taurus in front of the address. PO Corderolantigua and PO Rodriguez frisked the front of § 87(2)(b)'s pants and the front pocket of his hoodie (**Allegations C: Abuse of Authority – Frisk, substantiated; Allegation D: Abuse of Authority – Frisk, subject resigned**). When § 87(2)(b) shouted that he was going to call the Internal Affairs Bureau, PO Rodriguez stated, “fuck Internal Affairs,” while PO Corderolantigua stated, “We do what the fuck we want” (**Allegations E: Discourtesy – Word, subject resigned; Allegation F – Discourtesy – Word, unable to determine**). At no point during the incident did either officer provide § 87(2)(b) with a business card (**Allegations G: Abuse of Authority – Failure to Provide RTKA Card, substantiated; Allegation H: Abuse of Authority – Failure to Provide RTKA Card, subject resigned**). § 87(2)(g), § 87(4-b)

§ 87(2)(b). PO Corderolantigua provided a misleading statement to the CCRB on February 22, 2023, and PO Mcallister and PO Rosario provided misleading statements to the CCRB on March 22, 2023 (**Allegations M, N, and O: Untruthful Statement – Misleading Official Statement; substantiated**).

No summonses or arrests resulted from the incident.

There was no body-worn camera (BWC) footage or vehicle mounted video system footage of the incident available (**02-04 Board Review**). § 87(2)(b) provided a cell phone video of the incident (**05-06 Board Review**).

## Findings and Recommendations

**Allegation (A) Abuse of Authority: On September 6, 2022, Police Officer Clairet Corderolantigua stopped § 87(2)(b)**

**Allegation (B) Abuse of Authority: On September 6, 2022, Police Officer Dominick Rodriguez stopped § 87(2)(b)**

**Allegation (C) Abuse of Authority: On September 6, 2022, Police Officer Clairet Corderolantigua frisked § 87(2)(b)**

**Allegation (D) Abuse of Authority: On September 6, 2022, Police Officer Dominick Rodriguez frisked § 87(2)(b)**

**Allegation (E) Discourtesy: On September 6, 2022, Police Officer Dominick Rodriguez spoke discourteously to § 87(2)(b)**

**Allegation (F) Discourtesy: On September 6, 2022, Police Officer Clairet Corderolantigua spoke discourteously to § 87(2)(b)**

**Allegation (G) Abuse of Authority: On September 6, 2022, Police Officer Clairet Corderolantigua failed to provide § 87(2)(b) with a business card.**

**Allegation (H) Abuse of Authority: On September 6, 2022, Police Officer Dominick Rodriguez failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) (07 Board Review) stated that he stepped out of a smoke shop located at § 87(2)(b) and took several stops before he was stopped by a female Hispanic officer and a White/Hispanic male officer on the sidewalk. The two officers proceeded to frisk his front pelvic area and the front pocket of his hoodie. Seconds later, the two officers walked back in the direction of an unmarked black Ford Taurus parked in front of the address and occupied by a chubby White/Hispanic male officer, seated in the driver's seat, and a bald Hispanic male officer, seated in the rear driver's side seat. § 87(2)(b) yelled that he was going to contact the Internal Affairs Bureau to file a complaint. The White/Hispanic officer on the sidewalk said, "Fuck Internal Affairs," while the Hispanic female officer stated, "We do what the fuck we want." The White/Hispanic male officer got into the front passenger seat and female Hispanic officer got into the rear passenger seat. The vehicle then drove off. None of the officers provided § 87(2)(b) with a business card.

§ 87(2)(b) described the officers as follows:

- Rear passenger-side seat: A Hispanic female in her thirties, who is 5'8" tall with a medium build. She had black hair tied up in a ponytail, was dressed in uniform
- Front passenger seat: A White/Hispanic male in his forties, who is 5'10" tall with a muscular build and was dressed in uniform.
- Driver: A White/Hispanic male in his forties with a stocky build and a fat, chubby face. He was dressed in uniform.
- Rear driver-side seat: A 35-year-old Hispanic male, who is bald with an athletic build and dressed in uniform.

A video (05 Board Review) provided by § 87(2)(b) shows an unmarked black Ford Taurus driving eastbound down § 87(2)(b). No officers are captured.

The investigation obtained the license plate number (§ 87(2)(f), § 87(2)(g)) of an unmarked black Ford Taurus being investigated in CCRB case #202205962, which also occurred within the confines of 48<sup>th</sup> Precinct.

The 48<sup>th</sup> Precinct's Daily Vehicle Assignment Sheet states that the assigned number for the unmarked vehicle with the license plate (§ 87(2)(f), § 87(2)(g)) is #874-15 (30 Board Review).

The AVL Log (26 Board Review) for vehicle #874-15 shows that the vehicle performed a U-turn before arriving in front of the incident location at 9:30 P.M.

A request for the Unmarked Vehicle Utilization Log for vehicle #874-15 was returned after the 48<sup>th</sup> Precinct indicated that the document was unavailable (33 Board Review).

The 48<sup>th</sup> Precinct's Roll Call from the date of the incident lists PO Rodriguez, PO McAllister, PO Acostavilla and PO Corderolantigua as the only four officers assigned to the Neighborhood Safety Team (32 Board Review). PO Rosario is listed as having a tour change on the date of the incident. It does not list their assigned vehicle.

PO Corderolantigua's memo book (08 Board Review) states her partners on the date of the incident were PO Mcallister, PO Rodriguez, and PO Rosario. Her memo book, as well as those of her partners (09-11 Board Review) do not contain any entries pertaining to the incident or the vehicle to which they were assigned.

In an email responding to a request to identify the officers assigned to vehicle #874-15 on the date of the incident, Police Officer Jessica Anderson of the 48<sup>th</sup> Precinct wrote, “the RMP is not known to whom it was assigned to that day [sic]” **(31 Board Review)**.

Pedigree information provided with the MOS photos of PO Corderolantigua, PO Rodriguez, PO McAllister, and PO Rosario lists them as follows:

- PO Corderolantigua: A Hispanic female **(12 Board Review)** § 87(2)(b). She has a thin build and long black hair. In her photo, her hair is tied behind her head.
- PO Rodriguez: A White male **(14 Board Review)** § 87(2)(b). He has an average build and short black hair.
- PO McAllister: A White male **(15 Board Review)** § 87(2)(b). He has a heavy build and short brown hair. In his MOS photo, PO Mcallister is shown with a round, chubby face.
- PO Rosario: Hispanic male **(13 Board Review)** § 87(2)(b). He has an average build and short black hair. In his MOS photo, he is sporting a buzzcut.

As of December 14, 2022, PO Rodriguez has resigned from the NYPD **(34 Board Review)**.

PO Corderolantigua, PO Rosario, and PO Mcallister **(17-19 Board Review)** had no recollection of interacting with § 87(2)(b) or performing or witnessing any of the alleged misconduct. All three officers did not recall their vehicle’s assigned number from the date of the incident but stated it was either #874 or #556. PO Corderolantigua stated she typically sits in the back of her assigned vehicle while on patrol because she is one of the smallest members on her team. PO Mcallister stated that he is typically the driver of his assigned vehicle while on patrol.

People v. De Bour, 40 N.Y.2d 210 (1976) **(20 Board Review)**, states that officers may forcibly stop and detain a person when they have a reasonable suspicion that the particular person has committed, is committing, or is about to commit a felony or misdemeanor. Officers may frisk an individual if they reasonably suspect that they are in danger of physical injury by virtue of the individual being armed.

NYC Administrative Code §14-174 **(21 Board Review)** states that members of service are to offer business cards at the conclusion of certain law enforcement activities, including noncustodial questioning of individuals suspected of criminal activity, frisks, and searches.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and C** be **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unable to determine**.

§ 87(2)(g)

. It is therefore recommended that **Allegation G** be closed as **substantiated**.

Given PO Rodriguez' resignation from the NYPD, it is recommended that **Allegation B, D, E, and H** be closed as **miscellaneous – subject resigned**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

**Allegation (M) Untruthful Statement: On February 22, 2023, Police Officer Clairet Corderolantigua provided a misleading official statement to the CCRB.**

**Allegation (N) Untruthful Statement: On March 22, 2023, Police Officer Brian Mcallister provided a misleading official statement to the CCRB.**

**Allegation (O) Untruthful Statement: On March 22, 2023, Police Officer Michael Rosario provided a misleading official statement to the CCRB.**

PO Corderolantigua, PO Mcallister, and PO Rosario (**17-19 Board Review**) each stated that they did not recall the incident during the CCRB interviews, even after being presented with descriptions and pictures of § 87(2)(b) a description of the incident, the AVL log for one of their vehicles placing it at the scene, and, in the case of PO Corderolantigua and PO Mcallister, the video provided by § 87(2)(b).

According to NYPD Administrative Guide Procedure 304-10 (**24 Board Review**), members of service are prohibited from intentionally making a misleading official statement. A misleading

statement is defined as a statement that is intended to misdirect the fact finder, and materially alter the narrative by intentionally omitting a material fact or facts or by making repeated claims of “*I do not remember*” or “*I do not know*” when a reasonable person under similar circumstances would recall, or have been aware of, such material facts. A material fact is defined as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. It is therefore recommended that **Allegations M, N, and O** be **substantiated**.

#### Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to five other CCRB complaints and has been named as a victim in 42 allegations (**27 Board Review**):
  - § 87(2)(b)
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
  - [REDACTED]
- PO Rodriguez is no longer an active member of service. He is a subject in one other CCRB complaint, which is still open. § 87(2)(g)
- PO Mcallister has been a member of service for five years. He is a subject in three other CCRB complaints and six other allegations, none of which have been substantiated. § 87(2)(g)



